

Notice of the National Commission for Data Protection regarding the draft Grand-Ducal Regulation implementing Article 55 of the law of February 2, 2022, on weapons and ammunition by establishing the modalities for the special professional training of officials of the Customs and Excise Administration regarding weapons and ammunition, and determining the data to which these officials have access in the performance of their duties related to weapons and ammunition

Deliberation No. 86/AV40/2023 of September 22, 2023

1. In accordance with Article 8 of the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection, transposing Article 46.1.e) of Directive (EU) 2016/680 of April 27, 2016, of the European Parliament and of the Council regarding the protection of natural persons in relation to the processing of personal data by competent authorities for the purposes of preventing criminal offenses, investigations, and prosecutions in this matter or the execution of criminal sanctions, and the free movement of such data, and repealing Framework Decision 2008/977/JHA of the Council, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises the Chamber of Deputies, the Government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons in relation to the processing of personal data." Furthermore, Article 27.2 of the law of August 1, 2018, concerning the protection of natural persons in relation to the processing of personal data in criminal matters as well as in matters of national security, transposing Article 28.2 of the aforementioned directive into national law, provides that the CNPD "is consulted in the context of the preparation of a draft law or a draft Grand-Ducal regulation relating to processing."

2. On July 12, 2023, Madam Minister of Justice invited the CNPD to express its opinion on the draft Grand-Ducal regulation implementing Article 55 of the law of February 2, 2022, on weapons and ammunition by establishing the modalities for the special professional training of officials of the Customs and Excise Administration regarding weapons and ammunition, and determining the data to which these officials have access in the performance of their duties related to weapons and ammunition (hereinafter referred to as the "draft Grand-Ducal regulation").

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3.

The National Commission had issued three opinions¹ regarding Bill No. 7425, which would become the law of February 2, 2022, on firearms and ammunition. However, the draft Grand-Ducal regulation raises similar questions to those already mentioned concerning Article 55 of the law of February 2, 2022, on firearms and ammunition.

4. The National Commission will limit its observations to the provisions of the draft Grand-Ducal regulation relating to the protection of personal data, namely Article 6.

1. Regarding the files in question

5. Article 55.5, paragraph 1, of the law of February 2, 2022, on firearms and ammunition states the following:

"In the exercise of their functions provided for in this article, the officials of the Customs and Excise Administration referred to herein have direct access, through a computer system, to the firearms file. The personal data from the file accessible under this article shall be determined by Grand-Ducal

regulation.”

6. According to the understanding of the CNPD, this provision grants officials of the Customs and Excise Administration access to the firearms file referred to in Article 15 of the law of February 2, 2022, on firearms and ammunition. However, this access is not complete, and a Grand-Ducal regulation will specify the categories of data that may be accessed.

7. However, through Article 6 of the draft Grand-Ducal regulation, the authors seem to intend to grant access to two different files: on the one hand, the file of prohibited firearms mentioned in Article 102 of the Grand-Ducal regulation of July 22, 2008, implementing Article 48-24 of the Code of Criminal Procedure and Article 34-1 of the amended law of May 31, 1999, on the Police and the General Inspectorate of Police, and on the other hand, the firearms file referred to in Article 15 of the law of February 2, 2022, on firearms and ammunition.

1 Opinion No. 42/2019 of July 8, 2019, of the National Commission for Data Protection, doc. parl. No. 7425/05; opinion No. 2/2021 of February 4, 2021, doc. parl. No. 7425/09; opinion No. 29/AV24/2021 of October 1, 2021, doc. parl. No. 7425/11.

2 “Regarding the file of prohibited firearms under the Minister of Justice's jurisdiction, the judicial authorities referred to in Articles 48-24 and 51-1 of the Code of Criminal Procedure, as well as the officials referred to in Articles 34-1 and 77-1 of the amended law of May 31, 1999, on the Police and the General Inspectorate of Police, have access to the following personal data:

1. the names, first names, addresses, profession, dates, and places of birth of individuals holding a firearms authorization;
2. the brands, models, calibers, and serial numbers of authorized firearms;
3. the dates of acquisition and sale of each firearm, as well as the history of its successive owners and holders;
4. the reasons as well as the history of the dates of issuance and expiration of firearms authorizations issued, expired, refused, revoked, or withdrawn;
5. information regarding stolen, diverted, or lost firearms.”

4.

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regarding the draft Grand-Ducal regulation implementing Article 55 of the law of February 2, 2022, on firearms and ammunition by establishing the modalities for the special professional training of officials of the Customs and Excise Administration in matters of firearms and ammunition, and determining the data to which these officials have access in the exercise of their missions in relation to firearms and ammunition.

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8. The National Commission regrets that the wording of Article 6 of the draft Grand-Ducal Regulation brings back uncertainties that it believed had been resolved following the amendments made to draft bill No. 7425. Indeed, in its opinion of July 8, 2019, the CNPD noted that the initial text of the draft law referred both to the "weapons file" and the "prohibited weapons file," and even to the "file of the Service for Prohibited Weapons," and recommended standardizing the terminology or, in the case of different files being referenced, to indicate this expressly in the draft law. Following this observation from the National Commission, the terminology was standardized through parliamentary amendments adopted on May 27, 2020.

9. The CNPD understands that Article 10 of the Grand-Ducal Regulation of July 22, 2008, referring to the prohibited weapons file of the Minister of Justice, targets the same file as that mentioned in Article 15 of the law of February 2, 2022, on weapons and ammunition, so that point 1° of Article 6 of the draft Grand-Ducal Regulation could be deleted. Similarly, it follows that in the event of a divergence between the categories of data intended to be included in the weapons file, Article 15.2 of the law of February 2, 2022, on weapons and ammunition should prevail over the enumeration made in Article 10 of the Grand-Ducal Regulation of July 22, 2008.

II.

Regarding the categories of data

10. As explained in point 6 of this opinion, it was the understanding of the CNPD that the access of officials from the Customs and Excise Administration to the weapons file is not complete but limited to certain categories of data to be determined by Grand-Ducal Regulation, in accordance with the principle of data minimization established in Article 3.1.e) of the law of August 1, 2018, on the protection of natural persons with regard to the processing of personal data in criminal matters as well as in matters of national security.

11. In its opinion of July 8, 2019, the CNPD regretted that draft bill No. 7425 "is not accompanied by a draft Grand-Ducal Regulation that would specify the categories of data to which agents of the Customs Administration could have access, so that it is not in a position to assess whether the principle of data minimization is respected."

12. Upon reading Article 6 of the draft Grand-Ducal Regulation, it is clear that it does not provide any clarification regarding the categories of data to which officials of the Customs and Excise Administration can access. This raises the question of whether the draft Grand-Ducal Regulation is compliant, on the one hand, with the law under which it would be enacted and, on the other hand, with the principle of data minimization.

Thus adopted in Belvaux on September 22, 2023.

The National Commission for Data Protection

Tine A. Larsen

President

Thierry Lallemand

Commissioner

Lemmer

Commissioner

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Commissioner

CNPD

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